

not sufficient to justify an award of punitive damages.” (Ebaugh v. Rabkin (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) Furthermore, the circumstances of oppression, fraud or malice must be alleged in the pleading to support such a claim. (Grieves, supra, 157 Cal.App.3d at 166.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Analysis

Plaintiff argues for the first time in his opposition to the instant motion that Defendants were driving with a suspended or revoked driver’s license. (Opp. to MTS. at 1:23-25.) However, arguments in opposition that are not supported by allegations in the challenged pleading are insufficient.

Circumstances of oppression, fraud, or malice must be alleged in the pleading to support a prayer for punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Here, the complaint alleges no facts – let alone facts showing oppression, fraud, or malice. Even if these allegations are true, driving without a valid license does not, by itself, establish the requisite intent for punitive damages, absent additional allegations of despicable conduct. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 90.)

Because Simoni’s opposition allegations are not pleaded in his complaint, they cannot support a prayer for punitive damages. The Court nonetheless views Simoni’s attempt to insert allegations into his opposition that are absent from his complaint as a demonstration that he may have additional facts to plead in an amended complaint such that the issues with his prayer for punitive damages cited herein may be cured.

Accordingly, Defendants’ motion to strike Plaintiff’s prayer for punitive damages is **granted, with leave to amend**.

3. 9:00 AM CASE NUMBER: C24-02905

CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Aiden Keeton and Aaron Keeton (collectively, “Defendants” or “the Keetons”)’s demurrer. The demurrer relates to Plaintiffs Joseph Simoni (“Plaintiff” or “Simoni”)’s complaint for (1) Motor Vehicle, (2) General Negligence, and (3) Premises Liability.

Defendants demur to Plaintiff’s entire complaint pursuant to California Code of Civil Procedure § 430.10(e) on the grounds that Plaintiff fails to state sufficient facts to constitute a cause of action.

Plaintiff opposes Defendants’ demurrer, arguing that he stated all elements of negligence.

For the following reasons, Defendants’ demurrer to Plaintiff’s complaint is **sustained with leave to amend**.

Factual Allegations and Background

Simoni filled out the PLD-PI-001 Complaint Form, approved for use by the Judicial Council of California, to initiate his lawsuit in this case on October 29, 2024. Though unclear in places, the form generally indicates that Simoni is suing father and son, Aaron and Aiden Keeton, and Does 1-100 for Motor Vehicle, General Negligence, and Premises Liability, and is seeking compensatory and punitive damages.

Prompt No. 10 on the form includes the check boxes for the causes of action and says: “The following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*).” (PLD-PI-001 Complaint Form (emphasis added).) Simoni did not attach any causes of action. Nowhere on the form or on any attachment does Simoni allege any facts related to the complaint. He did, however, attach a traffic collision report prepared by the Concord Police Department.

The gravamen of the traffic collision report is that Simoni was struck on his motorcycle by Aiden Keeton (“Aiden”), who was driving an automobile with Aaron Keeton (“Aaron”) in the vehicle. (Collision Report at 1.) Simoni was thrown off his motorcycle and sustained a fractured pelvis, a dislocated left shoulder, a cracked left knee and a concussion. (*Id.* at 6, 8.)

Defendants sent Simoni three meet-and-confer letters and left a voicemail over the span of 13 business days in early-September, demanding that Simoni amend his complaint to allege sufficient facts to state a cause of action and to withdraw his prayer for punitive damages or Defendants would file a demurrer and motion to strike. (Khosravi Dec. ISO MTS ¶ 4-7, Ex. B, C, D.) Simoni did not reply. (*Ibid.*) The essential requirements of California Code of Civil Procedure § 430.41 were met.

Defendants filed the instant motion on September 24, 2025. In it they contend that Simoni failed to allege sufficient facts to state a cause of action, and in fact failed to allege any facts at all.

Simoni, in his opposition to the Keetons’ demurrer, argues that he was “lawfully operating his motorcycle” when he was rear-ended by Aaron, whom he alleges was not only driving, but driving with a suspended or revoked driver’s license. (Opp. to Dem. at 2:9-13.) Simoni goes on to argue that “Defendant falsely claimed his 18-year-old son was driving. [...] The son held only a provisional license and could not legally drive at night.” (*Id.* at 2:14-16.) He further argues that the Keetons lied to police. Simoni does not provide citation to corresponding allegations in his complaint for these contentions.

Legal Standard

Demurrer

A demurrer tests the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A complaint shall contain a statement of the facts constituting the cause of action, in ordinary and concise language. (*Logan v. Southern Cal. Rapid Transit Dist.* (1982) 136 Cal.App.3d 116, 126; *Kamen v. Lindly* (2001) 94 Cal.App.4th 197, 201; Code Civ. Proc., § 425.10(a).)

“Although California courts take a liberal view of inartfully drawn complaints, “[i]t remains essential ...

that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought.’ (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413 citing *Signal Hill Aviation Co. v. Stroppe* (1979) 96 Cal.App.3d 627, 636.; *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

The Court assumes the truth of all properly pleaded material factual allegations, but not its contentions, deductions, or conclusions of law. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203; *Campbell v. Superior Court*, 44 Cal. App. 4th 1308, 1310-1311.) All that is required to overcome a demurrer is that the plaintiff plead facts entitling him to some form of relief under any possible legal theory. (*Woods v. Superior Court of Butte County* (1981) 28 Cal.3d 668, 673.) The complaint is “the only record by which the question of the sufficiency of the facts as stating a cause of action may be judged.” (*United Bank & Trust Co. v. Fidelity & Deposit Co.* (1928) 204 Cal. 460, 461; (*Childs v. Cal.* (1983) 144 Cal.App.3d 155, 159.)

The Judicial Council pleading forms have simplified the art of pleading, and have made the task of drafting much easier. Nevertheless, in some cases more is required than merely placing an “X” in a box. (See Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group at § 6:105, p. 6-24 [Weil & Brown].) “Adoption of Official Forms for the most common civil actions has *not* changed the statutory requirement that the complaint contain ‘facts constituting the cause of action.’” (*Id.* at § 6:103, p. 6-23.5.) Thus, in order to be demurrer-proof, a form “complaint must contain whatever *ultimate facts* are essential to state a cause of action under existing statutes or case law.” (*Ibid.*)

(*People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1484.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment even where no request to amend the pleading is made. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Plaintiff’s Complaint is Deficient

While use of a Judicial Council pleading form is adequate, merely “placing an ‘X’ in a box” does not obviate the need on demurrer for the inclusion of essential facts necessary to state a cause of action under statute or case law. (*People ex rel. Dept. of Transportation, supra*, 5 Cal.App.4th at 1484; (Code

Civ. Proc., § 425.10(a).)

Simoni cannot rely on the facts included in his opposition because those facts were absent from his complaint. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Allegations raised for the first time in opposition to a demurrer are not considered.

Even if, assuming *arguendo*, the traffic collision report attached to Simoni's complaint could qualify as a statement of facts, Simoni fails to plead how those facts relate to the causes of action he alleges.

Negligence

Drivers have a general duty to take ordinary care in avoiding creating unreasonable risks to others. (*Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 774.) "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle..." (Veh. Code, § 17150.)

General negligence, motor vehicle negligence, and premises liability are all forms of negligence to which general negligence principles apply. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619; *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 774.) Plaintiff must make a showing of four elements to state a claim for negligence: (1) the Defendants had a legal duty of care to Plaintiff; (2) the Defendants breached that duty; (3) Plaintiff suffered an injury because of the Defendants' breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141.)

Here, Simoni fails to allege in his complaint any act, omission, or wrongful act by either defendant or how such an act, omission, or wrongful act caused Simoni's injuries. He does not allege in his complaint how either defendant breached a duty of care. A traffic collision report cannot take the place of factual allegations in a pleading, and the Court is not required to assemble facts from an exhibit to construct a cause of action not pleaded.

Conclusion

Because Simoni alleges no facts supporting breach or causation in his complaint, he fails to state a cause of action for motor vehicle negligence, general negligence, or premises liability. The Court nonetheless views Simoni's attempt to insert allegations into his opposition that are absent from his complaint as a demonstration that he may have additional facts to plead in an amended complaint such that the issues with his initial complaint may be cured.

For the foregoing reasons, the demurrer to all three causes of action is **sustained with leave to amend**^[1].

^[1] The Court cautions Plaintiff that under the Sham Pleading Doctrine, a plaintiff cannot, without explanation, amend their complaint to add facts inconsistent with previous pleadings, or omit harmful allegations present in previous pleadings, in an effort to avoid attacks raised on demurrer or motion for summary judgment. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) Furthermore, when facts alleged in a pleading contrast with facts in exhibits, the facts contained in the exhibits will be accepted as true and controlling and will be given precedence. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222

Cal.App.3d 1624, 1627.) “The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

4. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas’ Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

HEARING ON SUMMARY MOTION

FILED BY: TEXACO INC.

TENTATIVE RULING:

This hearing is continued, *sua sponte*, to March 4, 2026 at 9:00 a.m. in Department 16.

6. 9:00 AM CASE NUMBER: C23-02494

CASE NAME: JON JONSSON VS. CARLOS BADELL

HEARING ON MOTION FOR SUMMARY JUDGMENT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, the City of Richmond (“City”). As discussed below, the motion is **granted**. The City shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On April 19, 2023, plaintiff, who was riding a motorized scooter in the bicycle lane, was struck by a truck driven by defendant Carlos Badell. The truck and scooter had both been traveling the same direction on West Cutting Boulevard, near the intersection with Canal Boulevard. Badell turned right into a parking lot, struck plaintiff, and reported being unable to see plaintiff because the bicycle lane was situation behind a row of cars that were parked along Cutting, parallel to Cutting, between traffic and the bicycle lane. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact Nos. 5, 9, and responses by plaintiff and Badell.) Plaintiff has complete memory loss from a point somewhere after turning onto Cutting Boulevard, before the collision occurred. (SSUMF, Fact No. 6, and responses by plaintiff and Badell.)

On October 3, 2023, plaintiff brought suit against the City of Richmond, as well as the individual defendant, Carlos Badell. (SSUMF, Fact No. 1, and responses by plaintiff and Badell.)